

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NASSAU

JUDE SAMSON,

Plaintiff,

vs.

THE COUNTY OF NASSAU, THE CITY OF
NEW YORK, and NICHOLAS
GERICITANO, individually and in his official
capacity,

Defendants.

Index No.:

SUMMONS

JURY TRIAL DEMANDED

Plaintiff designates Nassau County as the
place of trial.

The basis of venue is:
Location of Occurrence

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to answer or appear, judgment will be taken against you by default for the relief demanded in the verified complaint.

DATED: NEW YORK, NEW YORK
November 5, 2021

Nelson, Robinson & El Ashmawy, PLLC

By:



Daniel X. Robinson, Esq.
Attorneys for Plaintiff
11 Park Place, Suite 711
New York, New York 10007
(212) 962-1740

1 Defendants' Addresses:

2 THE COUNTY OF NASSAU
240 Old Country Road
3 Mineola, New York 11501

4 THE CITY OF NEW YORK
100 Church Street
5 New York, New York 10007

6 POLICE OFFICER NICHOLAS GERICITANO
One Police Plaza
7 New York, New York 10038

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SUMMONS

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NASSAU

JUDE SAMSON,

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vs.

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Index No.:

VERIFIED COMPLAINT

Plaintiff, JUDE SAMSON, by his attorneys, NELSON, ROBINSON & EL ASHMAWY,
PLLC, as and for a Verified Complaint against the Defendants, upon information and belief, sets
forth and alleges as follows:

PARTIES

1. Plaintiff is an individual who, at all times relevant to the within action, has been a
resident of the County of Nassau, State of New York.

2. Defendant THE COUNTY OF NASSAU (“Nassau County”), at all times
hereinafter mentioned, was and still is a municipal corporation duly organized and existing
under, and by virtue of, the laws of the state of New York.

3. Defendant NICHOLAS GERICITANO (“P.O. Gericitano”) is an individual who,
at all times relevant to the within action, has been a resident of the State of New York.

4. Defendant THE CITY OF NEW YORK (hereinafter referred to as “NYC”), at all
times hereinafter mentioned, was and still is a municipal corporation duly organized and existing
under, and by virtue of, the laws of the state of New York.

1 5. Defendant Nassau County, at all times relevant hereto, owned, operated,
2 managed, maintained, directed, and/or controlled THE NASSAU COUNTY POLICE
3 DEPARTMENT (hereinafter referred to as “the NCPD”), a municipal subdivision thereof.

4 6. Defendant Nassau County and/or the NCPD, at all times relevant hereto,
5 employed Police Officers (“NCPD Officers”) who were trained, managed, directed, supervised,
6 and/or controlled by same.

7 7. That at all times hereinafter mentioned, the hereinafter mentioned NCPD Officers
8 were duly sworn Police Officers acting pursuant to their employment with Defendant Nassau
9 County and/or the NCPD and in accordance with their official duties.

10 8. That at all times hereinafter mentioned, the hereinafter mentioned NCPD Officers
11 were acting under color of state law and/or in compliance with the official rules, regulations,
12 laws, statutes, customs, usages, and/or practices of the State of New York and/or Defendant
13 Nassau County and/or the NCPD.

14 9. That at all times hereinafter mentioned, each and every act of the hereinafter
15 mentioned NCPD Officers was done while acting within the scope of their employment with,
16 and in furtherance of their employment by, Defendant Nassau County and/or the NCPD.

17 10. Defendant NYC, at all times relevant hereto, owned, operated, managed,
18 maintained, directed, and/or controlled THE NEW YORK CITY POLICE DEPARTMENT
19 (hereinafter referred to as “the NYPD”), a municipal subdivision thereof.

20 11. Defendant NYC and/or the NYPD, at all times relevant hereto, employed
21 Defendant P.O. GERITANO who was trained, managed, directed, supervised, and/or
22 controlled by same.

23
VERIFIED COMPLAINT

-- 2 --

1 12. That at all times hereinafter mentioned, Defendant P.O. GERICITANO was a
2 duly sworn Police Officer acting pursuant to his employment with Defendant NYC and/or the
3 NYPD and in accordance with his official duties.

4 13. That, at all times hereinafter mentioned, Defendant P.O. GERICITANO was
5 acting under color of state law and/or in compliance with the official rules, regulations, laws,
6 statutes, customs, usages, and/or practices of the State of New York and/or Defendant NYC
7 and/or NYPD.

8 14. That at all times hereinafter mentioned, each and every act of Defendant P.O.
9 GERICITANO was done while acting within the scope of his employment with, and in
10 furtherance of his employment by, Defendant NYC and/or the NYPD.

11 15. This suit is brought against Defendant P.O. GERICITANO in both his individual
12 and official capacity as he acted within the scope of his employment and under color of state law,
13 to wit, under color of statutes, ordinances, regulations, policies, customs, and/or usages of the
14 State of New York and/or Defendant NYC and/or the NYPD.

15 16. That a Notice of Plaintiff's claim, including the nature of the claim, the date, time,
16 and location thereof, and the manner in which the claim arose, was duly served upon the New
17 York City Comptroller's Office, on or about November 6, 2020.

18 17. That more than 30 days have elapsed since the Notice of Claim has been served
19 upon Defendant NYC and said Defendant has neglected or refused to make any adjustment or
20 payment thereof.

21 18. That a Notice of Plaintiff's claim, including the nature of the claim, the date, time,
22 and location thereof, and the manner in which the claim arose, was duly served upon the Office
23 of the Nassau County Attorney, on or about November 4, 2020.

VERIFIED COMPLAINT

-- 3 --

20. That this action is commenced within one (1) year and ninety (90) days after the causes of action arose.

21. That, at all times herein mentioned, Plaintiff resided at 3486 Silverton Avenue, Wantagh, New York 119793, County of Nassau, State of New York.

22. On or about August 9, 2020, Plaintiff was lawfully traversing through John J. Burns Park in Massapequa, New York when, suddenly and with no warning or provocation whatsoever on his part, Plaintiff was violently confronted by Defendant P.O. GERICITANO who immediately identified himself to Plaintiff as an NYPD Police Officer.

23. Defendant P.O. GERICITANO subsequently demanded that Plaintiff vacate the park. Plaintiff attempted to videotape his interaction with P.O. GERICITANO with his cell phone. P.O. GERICITANO lunged at Plaintiff, grabbed the phone from his hands, and threw it. Defendant P.O. GERICITANO then forcibly began to shove Plaintiff and brutally flung him to the ground. While Plaintiff lay prone and defenseless upon the ground, Defendant P.O. GERICITANO proceeded to the top of Plaintiff's body and severely beat him about his face and body. Defendant P.O. GERICITANO only relented after he was physically pulled off Plaintiff's bloodied body by other individuals.

24. Plaintiff proceeded to recover his phone and call 911 for the emergency medical treatment he required and to report being the victim of a violent crime. NCPD personnel arrived shortly thereafter. Upon information and belief, they called for an ambulance to evaluate Plaintiff

VERIFIED COMPLAINT

-- 4 --

1 whose face and body were covered in blood. Upon information and belief, NCPD Officer “Jane”
2 Nielsen (Badge No. 2711) (“P.O. Nielsen”) and/or other NCPD Officers took an account of the
3 incident from Plaintiff, P.O. GERICITANO, and other individuals who allegedly witnessed the
4 incident.

5 25. While Plaintiff had yet to be taken to the hospital to receive medical treatment,
6 P.O. Nielsen and other NCPD Officers proceeded to pressure him into minimizing the severity of
7 his injuries in his statement to them. They dissuaded him from seeking to bring charges against
8 Defendant P.O. GERICITANO explicitly because he was an NYPD Officer. The NCPD officers
9 expressed concern to Plaintiff as to the adverse consequences Defendant P.O. GERICITANO
10 might face in his employment with the NYPD. P.O. Nielsen and other NCPD officers threatened
11 to charge Plaintiff, himself, with crimes including assault if he declined to heed their directives
12 to not press charges against Defendant P.O. GERICITANO.

13 26. P.O. Nielsen's official report attributed numerous, materially inaccurate
14 statements to Plaintiff. Plaintiff subsequently made efforts to supplement and revise his
15 statement so as to ensure the investigation and prosecution of his attacker, Defendant P.O.
16 GERICITANO. Again, Plaintiff met significant resistance from the NCPD in these efforts.

17 27. Following the attack, Plaintiff was treated at the emergency department of Syosset
18 Hospital. Medical personnel performed a CT scan of Plaintiff's head and identified acute
19 fractures to his nose, bruising, and swelling.

20 28. As a result of the physical trauma Plaintiff sustained at the hands of P.O.
21 GERICITANO and emotional trauma of the NCPD officers, Plaintiff began to suffer severe
22 psychological trauma and is currently receiving mental health treatment.

23
VERIFIED COMPLAINT

-- 5 --

1 **AS AND FOR A FIRST CAUSE OF ACTION**
2 **ARISING FROM NEGLIGENCE**

3 29. Plaintiff re-alleges and incorporates herein by this reference each and every
4 allegation contained in each preceding paragraph above as though fully set forth herein.

5 30. It was the duty of Defendant NYC and/or the NYPD to use reasonable care in the
6 hiring, training, and retaining of the Police Officers in their employ and/or to properly supervise
7 Police Officers employed by them to ensure that they do not physically attack and/or otherwise
8 abuse those in their charge.

9 31. Defendant NYC and/or the NYPD, their agents, servants, and/or employees
10 disregarded their duty to protect Plaintiff by negligently hiring and/or retaining Defendant P.O.
11 GERICITANO, failed to adequately train him to act as a reasonably prudent Police Officer,
12 and/or failed to prevent the aforesaid Defendant from utilizing cruel, excessive, and/or
13 unwarranted physical force and/or violence against Plaintiff by virtue of his threatening,
14 attacking, and/or assaulting Plaintiff, inflicting serious injuries upon Plaintiff, and/or taking no
15 action to prevent these unlawful and/or abusive acts.

16 32. Defendant NYC and/or the NYPD, their agents, servants, and/or employees,
17 negligently and/or carelessly failed to take all reasonable and necessary precautions to prevent
18 the aforesaid occurrence.

19 33. It was the duty of Defendant P.O. GERICITANO to use reasonable care in the
20 execution of his duties as a Police Officer and/or to act in a reasonably prudent manner in his
21 interactions with the general public.

22 34. Defendant NYC and/or the NYPD, their agents, servants, and/or employees,
23 negligently failed to ensure those Police Officers in their employ who hold themselves out to the

VERIFIED COMPLAINT

-- 6 --

1 public as law enforcement officers failed to use such care that a reasonably prudent and careful
2 Police Officer would otherwise have used.

3 35. Defendant NYC and/or the NYPD, their agents, servants, and/or employees, by
4 and through Defendant P.O. GERICITANO, are liable for his negligent, careless, and/or reckless
5 actions in that they failed to ensure he used such such care in the performance of his official
6 duties as a Police Officer, and that a reasonably prudent and careful Police Officer would have
7 used such care under similar circumstances, and in that he P.O. GERICITANO violently and/or
8 unlawfully attacked Plaintiff, without cause and without regard for their official obligations to
9 protect the general public in their charge from such violence, and in otherwise performing their
10 official duties with respect to Plaintiff carelessly, recklessly and/or negligently and that, as a
11 result of the above-referenced attack which was caused by and through the conduct of Defendant
12 P.O. GERICITANO, Plaintiff suffered severe physical and/or psychological damage.

13 36. It was the duty of Defendant Nassau County and/or the NCPD to use reasonable
14 care in the hiring, training, and retaining of the Police Officers in their employ and/or to properly
15 supervise Police Officers employed by them to ensure that they take accurate police reports
16 and/or to not not discourage or interfere with civilians attempting to aid in the investigation or
17 prosecution of criminals.

18 37. Defendant Nassau County and or the NCPD, their agents, servants, and/or
19 employees, disregarded their duty to protect Plaintiff by negligently hiring and/or retaining
20 NCPD Officers, including but not limited to P.O. Nielsen and failed to adequately train them to
21 act as a reasonably prudent Police Officer.

22 38. Defendant Nassau County and or the NCPD, their agents, servants, and/or
23 employees had an affirmative duty to the public, generally, and/or to victims of a crime,

VERIFIED COMPLAINT

-- 7 --

specifically to not pressure them to downplay the severity of his or her injuries, to not press charges against criminal suspects, and/or to intentionally misattribute materially incorrect statements in an official report of a crime.

39. Defendant Nassau County and/or the NCPD, their agents, servants, and/or employees, negligently and/or carelessly failed to take all reasonable and necessary precautions to prevent the aforesaid occurrence.

40. It was the duty of P.O. Nielsen and/or other NCPD officers to use reasonable care in the execution of their duties as Police Officers and/or to act in a reasonably prudent manner in their interactions with the general public.

41. Defendants Nassau and/or NCPD, via their agents, servants, and/or employees, by and through P.O. Nielsen and/or other NCPD officers, negligently, carelessly, and/or recklessly acted in that they failed to use such care in the performance of their official duties as Police Officers as reasonably prudent and careful Police Officer would have used under similar circumstances, in otherwise performing their official duties with respect to Plaintiff carelessly, recklessly and/or negligently and that, as a result of the above-referenced conduct which was caused by and through the conduct of P.O. Nielsen and/or other NCPD officers, Plaintiff suffered severe physical and/or psychological damage.

42. As a result of the negligence of Defendants, Plaintiff suffered extensive, severe, and serious personal injuries, extreme pain and suffering, emotional shock and mental anguish, the need for further medical care and treatment, a decrease in his enjoyment of life, and lost earning capacity, all without negligence on his part contributing thereto.

43. The foregoing injuries and damages to Plaintiff were actually and proximately caused by virtue of the carelessness and/or negligence on the part of Defendants, their servants,

VERIFIED COMPLAINT

-- 8 --

agents, and/or employees, and without any negligence on the part of Plaintiff contributing thereto.

44. By reason of the above, Defendants are jointly and severally liable in that Defendants' liability arises by reason of a non-delegable duty or by reason of respondeat superior.

45. By reason of the foregoing, Plaintiff has been damaged in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION
ARISING FROM NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

46. Plaintiff re-alleges each and every allegation as contained in each preceding paragraph and as contained in the First Cause of Action of the within Verified Complaint with the same force and effect as though each were fully set forth herein.

47. Defendant NYC and/or the NYPD selected, hired, trained, retained, assigned, and/or supervised all members of its Police Personnel, including, but not limited to, Defendant P.O. GERICITANO named herein.

48. Defendant NYC and/or the NYPD was negligent and/or careless when they selected, hired, trained, retained, assigned, and/or supervised Defendant P.O. GERICITANO named herein.

49. Defendant NYC and/or the NYPD had actual and/or constructive notice as to the actions of P.O. GERICITANO as described in the foregoing.

50. Defendant Nassau County and/or the NCPD selected, hired, trained, retained, assigned, and/or supervised all members of its Police Personnel, including, but not limited to, the individual(s) referenced herein.

VERIFIED COMPLAINT

-- 9 --

1 51. Defendant Nassau County and/or the NCPD was negligent and/or careless when
2 they selected, hired, trained, retained, assigned, and/or supervised the individual(s) referenced
3 herein.

4 52. As a result of the negligence of Defendants, Plaintiff suffered extensive, severe,
5 and serious personal injuries, extreme pain and suffering, emotional shock and mental anguish,
6 the need for further medical care and treatment, a decrease in his enjoyment of life, and lost
7 earning capacity, all without negligence on his part contributing thereto.

8 53. The foregoing injuries and damages to Plaintiff were actually and proximately
9 caused by virtue of the carelessness and/or negligence on the part of Defendants, their servants,
10 agents, and/or employees, and without any negligence on the part of Plaintiff contributing
11 thereto.

12 54. By reason of the above, Defendants are jointly and severally liable in that
13 Defendants' liability arises by reason of a non-delegable duty or by reason of respondeat
14 superior.

15 55. By reason of the foregoing, Plaintiff has been damaged in an amount that exceeds
16 the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

17
18 **AS AND FOR A THIRD CAUSE OF ACTION**
 ARISING FROM ASSAULT

19 56. Plaintiff re-alleges each and every allegation as contained in each preceding
20 paragraph and as contained in the First and Second Causes of Action of the within Verified
21 Complaint with the same force and effect as though each were fully set forth herein.

22 57. P.O. GERICITANO intentionally caused Plaintiff to experience a reasonable
23 apprehension that an immediate, harmful and offensive contact would be applied to his person.

1 58. By virtue of the aforesaid intentional acts of Defendant, Plaintiff was severely
2 injured and damaged, rendered sick, sore, lame, and disabled, sustained severe emotional shock
3 and mental anguish, great physical pain and emotional upset, and a decreased enjoyment of life.

4 59. By reason of the above, Defendants are jointly and severally liable in that
5 Defendants' liability arises by reason of a non-delegable duty or by reason of respondeat superior
6 and that Defendants acted with reckless disregard for safety of others.

7 60. By reason of the above, Plaintiff brings this action for his conscious pain,
8 suffering, loss of enjoyment of life, and economic damages, both general and special, in an
9 amount that exceeds the jurisdictional limits of all lower courts which would otherwise have
10 jurisdiction.

11
12 **AS AND FOR A FOURTH CAUSE OF ACTION**
 ARISING FROM BATTERY

13 61. Plaintiff re-alleges each and every allegation as contained in each preceding
14 paragraph and as contained in the First, Second, and Third Causes of Action of the within
15 Verified Complaint with the same force and effect as though each were fully set forth herein.

16 62. P.O. GERICITANO intentionally caused a harmful and/or offensive contact to be
17 applied to the person of Plaintiff.

18 63. By reason of the above, Plaintiff was severely injured and damaged, rendered
19 sick, sore, lame, and disabled, sustained severe emotional shock and mental anguish, great
20 physical pain and emotional upset, and a decreased enjoyment of life.

21 64. By reason of the above, Defendants are jointly and severally liable in that
22 Defendants' liability arises by reason of a non-delegable duty or by reason of respondeat superior
23 and Defendants acted with reckless disregard for safety of others.

65. By reason of the above, Plaintiff brings this action for his conscious pain, suffering, loss of enjoyment of life, and economic damages, both general and special, in an amount that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

**AS AND FOR A FIFTH CAUSE OF ACTION
ARISING FROM EXCESSIVE FORCE**

66. Plaintiff re-alleges each and every allegation as contained in each preceding paragraph and as contained in the First, Second, Third, and Fourth Causes of Action of the within Verified Complaint with the same force and effect as though each were fully set forth herein.

67. Defendant NYC and/or the NYPD, their agents, servants, and/or employees, by and through Defendant P.O. GERICITANO, individually, intentionally used excessive, unlawful, and/or unjustified physical force to be applied to the person of Plaintiff while acting in their official capacities and under color of state law.

68. By reason of the above, Plaintiff was severely injured and damaged, rendered sick, sore, lame, and disabled, sustained severe emotional shock and mental anguish, great physical pain and emotional upset, and a decreased enjoyment of life.

69. By reason of the above, Defendants are jointly and severally liable in that Defendants' liability arises by reason of a non-delegable duty or by reason of respondeat superior and Defendants acted with reckless disregard for safety of others.

70. By reason of the above, Plaintiff brings this action for his conscious pain, suffering, loss of enjoyment of life, and economic damages, both general and special, in an

1 amount that exceeds the jurisdictional limits of all lower courts which would otherwise have
2 jurisdiction.

3
4 **AS AND FOR A SIXTH CAUSE OF ACTION**
ARISING PURSUANT TO 42 USC SECTION 1983

5 71. Plaintiff re-alleges each and every allegation as contained in each preceding
6 paragraph and as contained in the First, Second, Third, Fourth, and Fifth Causes of Action of the
7 within Verified Complaint with the same force and effect as though each were fully set forth
8 herein.

9 72. Defendant P.O. GERICITANO used physical force which was clearly excessive
10 in light of the circumstances at the time of the aforesaid incident. Defendant used such force with
11 the intent to inflict unnecessary harm and physical injury upon Plaintiff and such use of force did
12 cause severe physical and/or mental injuries to Plaintiff.

13 73. The use of excessive force by Defendant P.O. GERICITANO violated Plaintiff's
14 rights under the Eight Amendment of the United States Constitution to be free from cruel and
15 unusual punishment, as well as violated Plaintiff's rights under the Fourteenth Amendment of the
16 United States Constitution.

17 74. The aforementioned violation of Plaintiff's rights was made under color of law
18 and the authority of Defendant NYC and/or the NYPD and by Defendant P.O. GERICITANO, as
19 a Police Officer employed, managed, trained, supervised, and/or controlled by same.

20 75. The violation of Plaintiff's constitutional rights was caused by the implementation
21 of a custom, policy, and/or or official act of Defendant NYC and/or the NYPD in that they failed
22 to adequately and/or properly hire, retain, train, supervise, discipline, or in any other way control
23 the behavior and performance of Defendant P.O. GERICITANO, their agents, servants, and/or

employees, in their hiring practices, the exercise of their police functions, their failure to enforce and abide the laws of the City and State of New York, the reckless lack of cautious regard for the rights of the public, including Plaintiff, and/or exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of Defendants.

76. The failure of Defendants NYC and/or NYPD, their agents, servants, and/or employees in that they failed to adequately and/or properly hire, retain, train, supervise, discipline, or in any other way control the behavior and/or performance of Defendant P.O. GERICITANO, in the exercise of his function and his failure to enforce or abide by the laws of the City and State of New York was and is carried out willfully, wantonly, maliciously, and/or with reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of the State of New York, including Plaintiff.

77. P.O. Nielsen and/or other NCPD officers, individually and collectively, pressured Plaintiff to downplay the severity of his injuries and dissuaded him from pursuing criminal charges against Defendant P.O. GERICITANO because of the latter's employment with the NYPD as a police officer at the time of the aforesaid incident. The actions of P.O. Nielsen and/or other NCPD officers caused severe mental and emotional injuries to Plaintiff.

78. The actions of P.O. Nielsen and/or other NCPD officers violated Plaintiff's rights under the Fourteenth Amendment of the United States Constitution.

79. The aforementioned intentional violation of Plaintiff's rights was made under color of law and color of the authority of Defendants Nassau County and/or the NCPD and by P.O. Nielsen and/or other NCPD officers, as Police Officers employed, managed, trained, supervised, and/or controlled by same.

VERIFIED COMPLAINT

-- 14 --

1 80. The violation of Plaintiff's constitutional rights was caused by the implementation
2 of a custom, policy, and/or or official act of Defendant Nassau County and/or the NCPD to
3 inhibit civilians from aiding in the investigation and/or prosecution of fellow police officers in
4 that they failed to adequately and/or properly hire, retain, train, supervise, discipline, or in any
5 other way control the behavior and performance of Nassau County and NCPD, their agents,
6 servants, and/or employees, in their hiring practices, the exercise of their police functions, their
7 failure to enforce and abide the laws of the City and State of New York, the reckless lack of
8 cautious regard for the rights of the public, including Plaintiff, and/or exhibited a lack of that
9 degree of due care which prudent and reasonable individuals would show in executing the duties
10 of Defendants.

11 81. The failure of Defendants Nassau County and/or the NCPD, their agents, servants,
12 and/or employees in that they failed to adequately and/or properly hire, retain, train, supervise,
13 discipline, or in any other way control the behavior and/or performance of P.O. Nielsen and/or
14 other NCPD officers, in the exercise of their function and their failure to enforce or abide by the
15 laws of the State of New York was and is carried out willfully, wantonly, maliciously, and/or
16 with reckless disregard for the consequences as to display a conscious disregard for the dangers
17 of harm and injury to the citizens of the State of New York, including Plaintiff.

18 82. By reason of the above, Plaintiff was severely injured and damaged, rendered
19 sick, sore, lame, and disabled, sustained severe emotional shock and mental anguish, great
20 physical pain and emotional upset, and a decreased enjoyment of life.

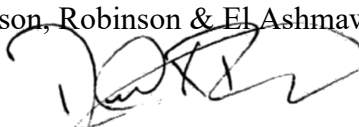
21 83. By reason of the above, Defendants are jointly and severally liable in that
22 Defendants' liability arises by reason of a non-delegable duty or by reason of respondeat superior
23 and Defendants acted with reckless disregard for safety of others.

1 84. By reason of the above, Plaintiff brings this action for his conscious pain,
2 suffering, loss of enjoyment of life, and economic damages, both general and special, in an
3 amount that exceeds the jurisdictional limits of all lower courts which would otherwise have
4 jurisdiction.

5 WHEREFORE, Plaintiff prays for judgment in his favor and against Defendants in an
6 amount on each cause of action that exceeds the jurisdictional limits of all lower courts that
7 would otherwise have jurisdiction, together with the costs and disbursements of this action, and
8 interest as allowed by law.

9 DATED: November 5, 2021
10 New York, New York

11 Nelson, Robinson & El Ashmawy, PLLC

12 By: 

13 Daniel X. Robinson, Esq.
14 Attorneys for Plaintiff
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VERIFIED COMPLAINT

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DATED: New York, New York
November 5, 2021

By:

Daniel X. Robinson, Esq.
Attorneys for Plaintiff
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19 of 19